1.2 Radical Reconstruction

In a debate, you're pitted against a team that wants to make its case as badly as you do. In 1866, the president and Congress both wanted to win control of the South. The struggle deteriorated into name-calling and power grabs.

MAIN IDEA Unhappy with Johnson's Reconstruction plans, the Republican Congress took the responsibility away from him.

JOHNSON VERSUS CONGRESS

Made bold by the lenient terms of Presidential Reconstruction, some southern states refused to ratify the 13th Amendment. They even refused to admit that secession had been illegal. Southern states also passed **black codes**—laws for controlling African Americans and limiting their rights. The codes granted African Americans a few rights, such as the right to marry and pursue a lawsuit in court, but most of the codes dealt with what African Americans could not do. For example, they could not own land, work in certain industries, or serve on a jury.

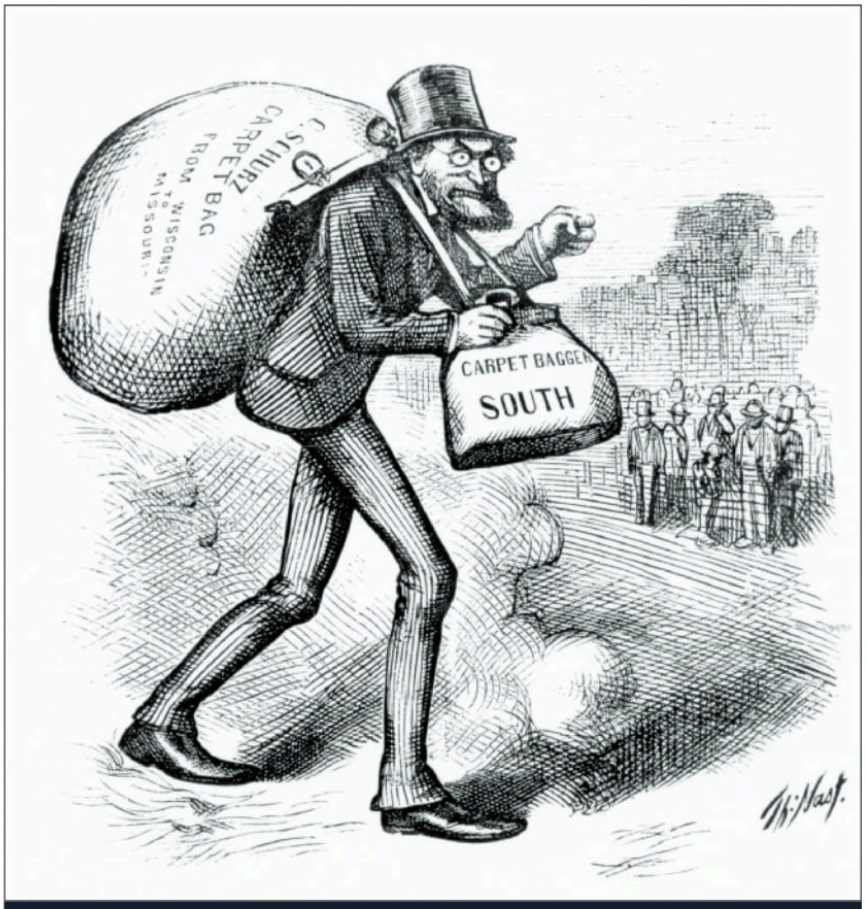
Congress was furious over the black codes and the leniency of Johnson's Reconstruction plans. As a result, Republicans proposed the **Civil Rights Act of 1866**. The bill granted full equality and citizenship to "every race and color." Johnson vetoed the bill, but Republicans in Congress overrode the veto, and the bill became law. To solidify these rights, Radical Republicans also proposed the 14th Amendment. As you've read, this amendment guarantees citizenship and equal protection under the law to all American-born people. On President Johnson's urging, many southern states refused to ratify the new amendment. It took two years for two-thirds of the states to ratify it.

THE RECONSTRUCTION ACTS OF 1867

Shocked northerners watched as delegates at southern state conventions refused to accept the 14th Amendment. When Republicans won control of Congress in the 1866 elections, they decided it was time to take Reconstruction out of the president's hands. They put themselves in charge of the process by passing the **Reconstruction Acts of 1867**. Their plan of action came to be called **Radical Reconstruction**.



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CRITICAL VIEWING Carl Schurz moved from Wisconsin to Missouri, where he was elected U.S. senator in 1868. In this political cartoon from 1872, he is shown as a carpetbagger. What details in the cartoon suggest what southerners thought of Schurz and other carpetbaggers?

The Reconstruction Acts placed all of the former Confederate states except Tennessee, which had already officially been readmitted to the Union, into five districts under military rule. Once military leaders decided that order had been established, the states could draw up new constitutions. Each constitution had to accept the 14th Amendment. Then the majority of a state's citizens and the U.S. Congress had to approve the new constitution. Republican delegates were given the task of writing the new state constitutions. Many of the delegates were southern white Republicans who had opposed secession. Those in the South who hated Radical Reconstruction called the southern white Republicans "scalawags," or dishonorable people.

Northern white Republicans also made up a sizeable number of the delegates. Many southerners believed the northern white Republicans had come to the South to get rich and called them "carpetbaggers," implying they had thrown everything they owned into a cheap suitcase, or carpetbag, and headed south. In reality, most of the Republicans from the North were Union veterans, preachers, teachers, or social workers. Free African Americans made up the rest of the delegates. Most were ministers or teachers.

To prevent Johnson from interfering with Radical Reconstruction, Congress passed the Tenure of Office Act, which prevented the president from removing government officials without Senate approval. The act clearly violated and ignored a Constitutional provision that granted the president the right to hire and fire Cabinet members. Johnson defied the act in August 1867, when he replaced his Secretary of War, Edwin M. Stanton, with Civil War hero Ulysses S. Grant. Stanton had been the only member of Johnson's Cabinet to support Radical Reconstruction. Congress responded by beginning the **impeachment** process, officially charging Johnson with "high crimes and misdemeanors," or extreme misconduct, while in office. They hoped to remove him from the presidency, and this was the first step. But the Senate tried Johnson and acquitted him, or found him not guilty, by one vote.

HISTORICAL THINKING

1. **READING CHECK** What had to be done before a state could be readmitted to the Union?
2. **DRAW CONCLUSIONS** Why did many in Congress want to remove Johnson from the presidency?
3. **INTERPRET MAPS** Which southern state was the last to be readmitted to the Union?

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